

are similarly situated”²⁴ The appellees are the Tennessee Secretary of State, Attorney General, Coordinator of Elections, and members of the State Board of Elections; the members of the State Board are sued in their own right and also as representatives of the County Election Commissioners whom they appoint.²⁵

²⁴ The complaint also contains an averment that the appellants sue “on their own behalf and *on behalf of all other voters* in the State of Tennessee.” (Emphasis added.) This may be read to assert a claim that voters in counties allegedly over-represented in the General Assembly also have standing to complain. But it is not necessary to decide that question in this case.

²⁵ The duties of the respective appellees are alleged to be as follows:

“Defendant, *Joe C. Carr*, is the duly elected, qualified and acting Secretary of State of the State of Tennessee, with his office in Nashville in said State, and as such he is charged with the duty of furnishing blanks, envelopes and information slips to the County Election Commissioners, certifying the results of elections and maintaining the records thereof; and he is further ex officio charged, together with the Governor and the Attorney General, with the duty of examining the election returns received from the County Election Commissioners and declaring the election results, by the applicable provisions of the Tennessee Code Annotated, and by Chapter 164 of the Acts of 1949, inter alia.

“Defendant, *George F. McCanless*, is the duly appointed and acting Attorney General of the State of Tennessee, with his office in Nashville in said State, and is charged with the duty of advising the officers of the State upon the law, and is made by Section 23-1107 of the Tennessee Code Annotated a necessary party defendant in any declaratory judgment action where the constitutionality of statutes of the State of Tennessee is attacked, and he is ex-officio charged, together with the Governor and the Secretary of State, with the duty of declaring the election results, under Section 2-140 of the Tennessee Code Annotated.

“Defendant, *Jerry McDonald*, is the duly appointed Coordinator of Elections in the State of Tennessee, with his office in Nashville, Tennessee, and as such official, is charged with the duties set forth in the public law enacted by the 1959 General Assembly of Tennessee creating said office.

“Defendants, *Dr. Sam Coward*, *James Alexander*, and *Hubert Brooks* are the duly appointed and qualified members constituting

We hold that the appellants do have standing to maintain this suit. Our decisions plainly support this conclusion. Many of the cases have assumed rather than articulated the premise in deciding the merits of similar claims.²⁶ And *Colegrove v. Green*, *supra*, squarely held that voters who allege facts showing disadvantage to themselves as individuals have standing to sue.²⁷ A num-

the State Board of Elections, and as such they are charged with the duty of appointing the Election Commissioners for all the counties of the State of Tennessee, the organization and supervision of the biennial elections as provided by the Statutes of Tennessee, Chapter 9 of Title 2 of the Tennessee Code Annotated, Sections 2-901, et seq.

"That this action is brought against the aforementioned defendants in their representative capacities, and that said Election Commissioners are sued also as representatives of all of the County Election Commissioners in the State of Tennessee, such persons being so numerous as to make it impracticable to bring them all before the court; that there is a common question of law involved, namely, the constitutionality of Tennessee laws set forth in the Tennessee Code Annotated, Section 3-101 through Section 3-109, inclusive; that common relief is sought against all members of said Election Commissions in their official capacities, it being the duties of the aforesaid County Election Commissioners, within their respective jurisdictions, to appoint the judges of elections, to maintain the registry of qualified voters of said County, certify the results of elections held in said County to the defendants State Board of Elections and Secretary of State, and of preparing ballots and taking other steps to prepare for and hold elections in said Counties by virtue of Sections 2-1201, et seq. of Tennessee Code Annotated, and Section 2-301, et seq. of Tennessee Code Annotated, and Chapter 164 of the Acts of 1949, inter alia."

The question whether the named defendants are sufficient parties remains open for consideration on remand.

²⁶ *Smiley v. Holm*, *supra*, at 361 ("citizen, elector and taxpayer' of the State"); *Koenig v. Flynn*, *supra*, at 379 ("citizens and voters' of the State"); *Wood v. Broom*, *supra*, at 4 ("citizen of Mississippi, a qualified elector under its laws, and also qualified to be a candidate for election as representative in Congress"); cf. *Carroll v. Becker*, *supra* (candidate for office).

²⁷ Mr. Justice Rutledge was of the view that any question of standing was settled in *Smiley v. Holm*, *supra*; MR. JUSTICE BLACK stated "that appellants had standing to sue, since the facts alleged show that

ber of cases decided after *Colegrove* recognized the standing of the voters there involved to bring those actions.²⁸

These appellants seek relief in order to protect or vindicate an interest of their own, and of those similarly situated. Their constitutional claim is, in substance, that the 1901 statute constitutes arbitrary and capricious state action, offensive to the Fourteenth Amendment in its irrational disregard of the standard of apportionment prescribed by the State's Constitution or of any standard, effecting a gross disproportion of representation to voting population. The injury which appellants assert is that this classification disfavors the voters in the counties in which they reside, placing them in a position of constitutionally unjustifiable inequality *vis-à-vis* voters

they have been injured as individuals." He relied on *Coleman v. Miller*, 307 U. S. 433, 438, 467. See 328 U. S. 564, 568.

Commentators have suggested that the following statement in MR. JUSTICE FRANKFURTER's opinion might imply a view that appellants there had no standing: "This is not an action to recover for damage because of the discriminatory exclusion of a plaintiff from rights enjoyed by other citizens. The basis for the suit is not a private wrong, but a wrong suffered by Illinois as a polity." 328 U. S., at 552. See Jaffe, *Standing to Secure Judicial Review: Public Actions*, 74 Harv. L. Rev. 1265, 1298 (1961); Lewis, *Legislative Apportionment and the Federal Courts*, 71 Harv. L. Rev. 1057, 1081-1083 (1958). But since the opinion goes on to consider the merits, it seems that this statement was not intended to intimate any view that the plaintiffs in that action lacked standing. Nor do the cases cited immediately after the above quotation deal with standing. See especially *Lane v. Wilson*, 307 U. S. 268, 272-273.

²⁸ *MacDougall v. Green*, *supra*, at 282 ("the 'Progressive Party,' its nominees for United States Senator, Presidential Electors, and State offices, and several Illinois voters"); *South v. Peters*, *supra*, at 277 ("residents of the most populous county in the State"); *Radford v. Gary*, 145 F. Supp. 541, 542 ("citizen of Oklahoma and resident and voter in the most populous county"); *Matthews v. Handley*, *supra* ("citizen of the State"); see also *Hawke v. Smith (No. 1)*, 253 U. S. 221; *Leser v. Garnett*, 258 U. S. 130; *Coleman v. Miller*, 307 U. S. 433, 437-446.